

Tentative Rulings and Resolution Review Hearings
September 14, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

BELCHER VS. SHASTA COMMUNITY HEALTH CENTER

CASE NUMBER: 25CV-0208268

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on August 3, 2026 to Defendant Shasta Community Health Center and Counsel Gordon Rees Scully Mansukhani, LLP for failure to appear at the Trial Setting Conference on July 27, 2026. The Trial Setting Conference was calendared in the Court's Order dated March 16, 2026, which was based on a Stipulation filed by the parties on February 17, 2026. Plaintiff appeared at the Trial Setting Conference, but Defendant did not. Defendant did not file a written response to the Order to Show Cause. Without sufficient excuse for failing to appear on July 27, 2026, sanctions are imposed against Defendant and Counsel in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. The Court confirms Mandatory Settlement Conference on January 25, 2027 and the trial date on March 2, 2027.

BUTLER, III VS. SHOEMAKER
CASE NUMBER: 25CV-0208353

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. While a Proof of Service of Summons has not been filed, the Court notes that Plaintiff has obtained an Order to serve by publication. The Order to Show Cause is **DISCHARGED**. A future hearing date will be addressed at 9:00 a.m. on the Resolution Review Calendar.

CARLS VS. MCCARTY, ET AL.
CASE NUMBER: 23CV-0203298

Tentative Ruling on Petition to Approve Minor’s Compromise: This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls’ claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor’s parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor’s Guardian ad Litem on October 5, 2023. The matter was originally calendared for hearing on June 8, 2026. Due to several defects, the Court continued the hearing to August 10, 2026 and ordered that Petitioner correct the issues by filing an Amended Petition no later than July 27, 2026. The Court further ordered that if Petitioner could not comply with the deadline, a status statement must be filed by July 27, 2026 informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. Nothing was filed prior to the August 10, 2026 hearing. At the hearing on August 10, 2026, the Court granted another continuance to today and ordered Plaintiff to submit an Amended Petition no later than August 31, 2026. An Amended Petition has not been filed.

As stated on June 8, 2026 and again on August 10, 2026, California Rule of Court, Rule 7.950 states that a petition for court approval of a minor’s compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor’s parent, without bond. This option is only available if the value of the minor’s estate, including the money

to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.

- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded.

Additionally, the Court notes that at the last hearing on August 10, 2026, Counsel informed the Court that the Guardian Ad Litem was working on getting an annuity. Because the purchase of annuity is dependent on the net settlement amount, the Court raises the additional issue of the attorney's fee request being higher than average. Counsel requests 40%, which the Court will not authorize in a minor's compromise case that did not go to trial. The Court does not intend to authorize attorney's fees in any amount in excess of 25% and refers Counsel to CRC 7.955. The Court expects that Counsel will provide the necessary declaration and justify any attorney's fee requested when filing the Amended Petition.

An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Demurrer: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan demur to the First Amended Complaint (FAC) filed by Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. on July 6, 2026. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendants have provided evidence of sufficient effort to meet and confer prior to filing the Demurrer.

Request for Judicial Notice. Defendants request the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated March 18, 2022. Plaintiffs did not object. The requests are granted pursuant to Evid. Code §§ 452(b), (c) and (h) and 453.

Merits of Motion. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e).

The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Plaintiff’s FAC alleges causes of action for: 1) Breach of Contract, 2) Breach of Implied Covenant of Good Faith and Fair Dealing, 3) Conversion, 4) Negligence, and 5) Declaratory Relief. Defendant’s Demurrer is made on the ground that the First Amended Complaint does not state facts sufficient to constitute a cause of action. CCP § 430.10(e).

Government Claim. Defendants raise the issue that Plaintiffs vaguely claim that Plaintiffs submitted claims to Defendants outlining their problems and requesting a response. Defendant Fall River Valley Fire Protection District is a public entity, therefore, Defendant Fall River Valley Fire Protection District and its employees are subject to the Government Claims Act. Liability of a public entity is subject to a procedural condition precedent; that is to say, the timely filing of a written claim with the proper officer or body is an element of a valid cause of action against a public entity. *Gong v. City of Rosemead* (2014) 226 Cal. App. 4th 363, 374. The failure to timely present a proper claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. *State of California v. Superior Court (Bodde)* (2004) 32 Cal. 4th 1234, 1239. Plaintiffs allege in ¶ 26 that “On January 22, 2024, Plaintiffs submitted a claim to Defendants, outlining the problems and requesting a response. Not having heard back, Plaintiffs submitted another claim on July 22, 2024. This complaint followed on October 21, 2024.”

Plaintiffs did not attach a copy of the claims or provide any further detail in the First Amended Complaint. Without either, the Court is unable to determine that the issues raised in the claims are the same as the causes of action alleged in the First Amended Complaint. The Court notes that in ruling on a previous Motion for Judgment on the Pleadings, the motion was granted on the basis that Plaintiffs had failed to allege compliance with the Government Claims Act. The Court granted leave to amend. Knowing this was an issue, Plaintiffs provided only three sentences in this regard with very little detail. The Demurrer to the FAC is sustained on the basis that Plaintiffs have not sufficiently alleged compliance with the Government Claims Act. The Court will grant leave to amend to correct this deficiency. While there is no requirement that a copy of the actual claims be attached to the Second Amended Complaint, that is the general practice and the most efficient manner for the Court to be in a position to evaluate whether Plaintiffs properly alleged compliance with the Government Claims Act.

Common Law Cause of Action. The next issue raised by Defendants is that the Third Cause of Action alleges conversion, which is a common law tort.

Except as otherwise provided by statute:

- (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.
- (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person.

Gov. Code § 815.

- (a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.
- (b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from

an act or omission of an employee of the public entity where the employee is immune from liability.
Gov. Code § 815.2.

Plaintiff alleges in ¶ 4 that it is unclear whether Defendant Jody Morgan was acting in her capacity as a representative of Fall Valley, or outside of her capacity as a representative and that she is named in both capacities. To the extent that the Third Cause of Action is alleged against Defendant Jody Morgain in her individual capacity, the Third Cause of Action survives the Demurrer made on that basis. However, as to the remaining Defendants and Jody Morgan in her official capacity, the Demurrer is sustained and there will be no leave to amend.

Failure to Attach Contract. The First, Second, Fourth, and Fifth Causes of Action are all based in some form on the existence of a contract between the parties. Plaintiffs did not attach the contract or include any verbatim terms. Defendants argue that *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal. App. 3d 452, 459 holds that in all actions alleging a breach of contract, plaintiffs are required to attach the contract or allege verbatim its terms. Defendants cite to *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal. App. 4th 394, which reasoned that *Otworth* read more into a statement in *Wise v. Southern Pacific Co.* (1963) 223 Cal. App. 2d 50 than was there and declined to follow *Otworth*. *Otworth* is still good law and has not been overturned by the California Supreme Court. The Court will follow *Otworth* which specifically held that “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” *Otworth v. Southern Pac. Transportation Co.*, *supra* 166 Cal. App. 3d at p. 459. The Demurrer on the basis that Plaintiffs failed to attach the contract or state the verbatim terms is sustained with leave to amend. The most efficient manner in which Plaintiffs can remedy this deficiency is to attach the contract. Should Plaintiffs amend, the Court will be in a position to evaluate any claims by Defendants that Defendants Fall River Valley Fire Protections District is not a party to the contract.

Derivative Action. The Fifth Cause of Action for Declaratory Relief is derivative of the First, Second, and Fourth Causes of Action. For that reason, the same rulings above apply.

The Demurrer is sustained as to the First, Second, Third, Fourth, and Fifth Causes of Action. Leave to amend is granted with the exception of the Third Cause of Action as it relates to Defendant Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan in her official capacity. Plaintiffs are granted ten days leave to file a Second Amended Complaint. Rather than the Court modifying the proposed Order provided, Defendants shall provide an Order consistent with the Court’s ruling.

IN RE: KNIGHT

CASE NUMBER: 26CV-0211019

Tentative Ruling on Petition for Change of Name: Petitioner Noelle Knight seeks to change her name to Noelle Conger. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. Additionally, Petitioner checked Item 6 of the Petition, however, based on the rest of the Petition, this appears to be an error. Petitioner will be asked to clarify whether Item 6 was checked in error.

MCCLOSKEY VS. ALMA JEAN JACKSON TRUST & TRUST AGENT, ET AL.

CASE NUMBER: 25CV-0209075

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 30, 2026 to all parties and counsel for timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both require a party to file a Mandatory Settlement Conference no less than five court days prior to a Mandatory Settlement Conference, which in this matter, was scheduled for

August 3, 2026. Plaintiff and Defendants each filed a written response that provides sufficient excuse for not filing the Mandatory Settlement Conference Statement. The Order to Show Cause is **DISCHARGED**. The Court notes that the matter is set for trial on October 6, 2026, however, Plaintiff's written response provides that the matter has settled and Defendants' provides that a settlement is close to being finalized. **An appearance is necessary on today's calendar to discuss whether the trial date should be vacated.**

IN RE: NORTON-CARTER

CASE NUMBER: 26CV-0210922

Tentative Ruling on Petition for Change of Name: Petitioner Trishia Lynn Norton-Carter seeks to change her name to Trishia Lynn Carter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ON DECK CAPITAL, INC. VS. CARTER

CASE NUMBER: 25CV-0209110

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 29, 2026 to Plaintiff On Deck Capital, Inc. and Counsel Gurstel Law Firm PC for failure to timely serve the Complaint in violation of CRC 3.110(b). The Complaint was filed on November 3, 2025. A Proof of Service of Summons has not been filed. The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). Plaintiff did not file a written response to the Order to Show Cause. Without sufficient excuse for failing to timely serve, monetary sanctions are imposed against Plaintiff and Counsel in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. Plaintiff is ordered to serve the Complaint and Summons. The matter will be on calendar on **Monday, November 16, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. CHADWICK

CASE NUMBER: 26CV-0210291

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Financial Casualty & Surety, Inc. moves to set aside summary judgment, discharge forfeiture, and exonerate bail. The motion was filed on August 25, 2026, which is less than sixteen court days prior to today. The motion was not timely filed. CCP § 1005(b). The motion is **DENIED** without prejudice. No proposed order was lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

Tentative Ruling on Motion to be Relieved as Counsel: Daniel Gopstein of Quill and Arrow, LLP moves to be relieved as counsel for Plaintiff Jasmine Roghani. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel.

Service

The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.

(1) If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client; or

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(2) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

CRC 3.1362(d).

Plaintiff has provided evidence of reasonable efforts to locate a valid address. There is a proof of service on file indicating that Plaintiff has been timely served by mail at her last known address. Defendant was served electronically. The Court finds that the matter has been properly noticed.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff's counsel has provided evidence that there is an irreparable breakdown in the attorney-client relationship.

The motion is **GRANTED**. Counsel provided a proposed Order that will be modified by the Court to include the correct future hearing date. Quill and Arrow, LLP will be relieved upon the filing of the Notice of Entry of Order. A future hearing date will be addressed at 9:00 a.m. on the Resolution Review Calendar.

IN RE: RUIZ

CASE NUMBER: 26CV-0210907

Tentative Ruling on Petition for Change of Name: Petitioner Jordan Anthony Ruiz seeks to change his name to Jordan Anthony Cross. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on July 22, 2026 to Plaintiff Christine L. Seraquiel, in pro per, for failure to timely serve per CRC 3.110(b), failure to timely seek entry of default per CRC 3.110(g), and failure to timely prosecute. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on September 8, 2025 and a valid Proof of Service of Summons has not been filed for Defendant Shaun Michael Carpenter. Proof of Service of Summons was filed for Defendant Jeffery Del Vecchio on September 22, 2025, however, no Request for Entry of Default has been filed. "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed." CRC 3.110(g). Plaintiff did not file a written response to the Order to Show Cause Re: Dismissal or a previous Order to Show Cause Re: Sanctions. Monetary sanctions were imposed on July 22, 2026 and have not been paid.

Without sufficient excuse for the delay and because prior sanctions have been ineffective in gaining compliance with the California Rules of Court, the matter is dismissed without prejudice pursuant to Gov. Code § 68608(b). The clerk is directed to vacate any future dates and close the file.

UMPQUA BANK VS. SABET, ET AL.

CASE NUMBER: 24CV-0205194

Tentative Ruling on Motion to Fix Amount of Attorney's Fees Awardable Pursuant to Summary Adjudication Order: Plaintiff Umpqua Bank seeks an award of attorney's fees and costs. Despite being properly noticed, Defendants Farzad Sabet, an individual, Marikit Del Rosario-Sabet, an individual, and Farzad Sabet and Marikit Del Rosario-Sabet, Trustees of the Sabet 2012 Trust (Sabet Defendants) did not file an Opposition.

There is a Judgment in this matter for Plaintiff and against Defendants on the First and Third Causes of Action. The First Cause of Action is for Breach of Loan Agreement. The loan agreement that formed the basis of the First Cause of Action is the Promissory Note attached as Exhibit A to the Declaration of Lisa E. Spiwak. Page two includes the following paragraph:

ATTORNEYS' FEES; EXPENSES. Lender may hire or pay someone else to help collect this Note if Borrower does not pay. Borrower will pay Lender that amount. This includes, subject to any limits under applicable law, Lender's attorneys' fees and Lender's legal expenses, whether or not there is a lawsuit, including attorneys' fees, expenses for bankruptcy proceedings (including efforts to modify or vacate any automatic stay or injunction), and appeals. Borrower also will pay any court costs, in addition to all other sums provided by law.

Attorney's Fees. Attorney's fees are recoverable where a contract specifically provides that attorney's fees and costs incurred to enforce the contract shall be awarded to either one of the parties. Civ. Code § 1717(a). Here, the Promissory Note includes such a provision. Plaintiff requests attorney's fees in the amount of \$69,750. To support this request, Plaintiff provides as Exhibit B to the Declaration of Lisa E. Spiwak a Detail Fee Transaction File List from Spiwak & Iezza, LLP. This provides detail for 194.10 hours of attorney time spent on this matter since August 12, 2024. The hours appear to be reasonably incurred. No objection has been raised by Defendants. The requested rates start at \$325 per hour and increase to \$400 per hour in June of 2025. The rates are reasonable for Shasta County and no objection has been raised by Defendants.

Costs. The Promissory Note provides that legal expenses are to be paid by the Borrower in addition to court costs. Plaintiff did not file a Memorandum of Costs, however, Plaintiff provided as Exhibit C to the Declaration of Lisa E. Spiwak a Detail Cost Transaction File List from Spiwak & Iezza, LLP. Items on the list total \$10,984.39. Nearly all of the costs appear to be allowable costs pursuant to CCP § 1033.5(a). While there may be some costs that exceed the parameters of CCP § 1033.5(a), the contract between the parties specifically provides for "legal expenses" not just court costs. The Court finds the items listed in Exhibit C to be reasonably incurred legal expenses. No objection has been raised by Defendants.

The motion is **GRANTED**. Attorney's fees are awarded in the amount of \$69,750 and costs/legal expenses are awarded in the amount of \$10,984.39. Plaintiff provided a proposed Order that will be executed by the Court. The Court notes that the matter is presently set for a review hearing on September 21, 2026. Given that a judgment has been entered, the clerk is directed to vacate the September 21, 2026 hearing date and close the file.

WINSELL VS. CITY OF REDDING, ET AL.

CASE NUMBER: 22CV-0200952

Tentative Ruling on Order for Appearance at Judgment Debtor Examination: This matter is on calendar regarding Defendant Tullis, Inc.'s Application and Order for Appearance and Examination. On June 8, 2026, the Court issued an Order to Appear to judgment debtor Ronald Lee Winsell to appear for an examination today. CCP § 708.110(d) requires personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." There is no proof of service on file. Without proof of service on Mr. Winsell, the matter is dropped from calendar.

9:00 a.m. – Review Hearings

ANGELL-MURRAY VS. CARRINGTON MORTGAGE SERVICES LLC

CASE NUMBER: 26CV-0209851

This matter is on calendar for review regarding status of removal. On February 27, 2026, the Court received the Notice of Removal of Action to the United States District Court for the Eastern District of California. The Court issued an Order staying the action on February 27, 2026. This case will remain open until the matter is dismissed or remanded back to state court. The Court will calendar the matter periodically to check on the status. To reduce the number of appearances, if the parties submit a status statement at least five court days in advance of a review hearing, the Court will not require an appearance. No status statement was filed for today's hearing. **An appearance is necessary on today's calendar.**

BUTLER, III VS. SHOEMAKER

CASE NUMBER: 25CV-0208353

This matter is on calendar for review regarding status of service. An Order to serve by publication issued on August 24, 2026. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

CASEY VS. DEPARTMENT OF MOTOR VEHICLES, ET AL.

CASE NUMBER: 26CV-0211122

This matter is on calendar for review regarding status of administrative record and to set a hearing and briefing schedule. Petitioner has not filed a Proof of Service reflecting service on Respondent Department of Motor Vehicles, however, Petitioner filed a Proof of Service indicating personal service on an individual named Juan Jeric at the address for Respondent's address in Sacramento. If Respondent has been served, the Court expects that the parties will be prepared to provide an update regarding the administrative record and set a briefing schedule and hearing date. If Respondent has not been served, the Court will continue the hearing for Petitioner to effect proper service. **An appearance is necessary on today's calendar.**

FELTON VS. LASKOWSKY, ET AL.

CASE NUMBER: 25CV-0207572

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 30, 2025 indicating the matter would be dismissed no later than July 15, 2026. The matter has not been dismissed, however, Plaintiff filed a status statement informing the Court that the parties are cooperating to sell the property and requesting 180 days to do so. The matter is continued to **Monday, March 15, 2027 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on Monday, March 15, 2027 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the March 15, 2027 hearing. **No appearance is necessary on today's calendar.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

This matter is on calendar for status of the case. Both parties filed status statements informing the Court that the matter has settled and is pending preliminary approval. The Court notes that Plaintiff's Motion for Preliminary Approval of Class Action Settlement has been calendared for September 28, 2026. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

HENDERSON, ET AL. VS. KEYSTONE RV, ET AL.

CASE NUMBER: 25CV-0208641

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Unconditional Settlement was filed on June 8, 2026. The matter should have been dismissed within 45 days of the date of settlement. The matter has not been dismissed. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on Monday, November 9, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the November 9, 2026 hearing. **No appearance is necessary on today's calendar.**

LVNV FUNDING LLC VS. PEREDO

CASE NUMBER: 25CV-0208454

This matter is on calendar for status of settlement. At the court trial on July 14, 2026, Plaintiff informed the Court that the matter had settled. Plaintiff filed a status statement informing the Court of the same and requesting 60 days for the settlement agreement to be circulated and signed. Plaintiff is reminded of Plaintiff's obligation to file a Notice of Settlement of the Entire Case (Judicial Council Form CM-200) within 45 days of the date of settlement. The matter is continued to **Monday, November 16, 2026 at 9:00 a.m. in Department 63** for status of settlement. **No appearance is necessary on today's calendar.**

MINOR VS. ALL AMERICAN HEALTHCARE SERVICES WEST, LLC, ET AL.

CASE NUMBER: 25CV-0207766

This matter is on calendar for review regarding status of arbitration. The parties filed a joint status report informing the Court that arbitration has been initiated through JAMS and an arbitrator has not been appointed. The matter is continued to **Tuesday, January 19, 2027 at 9:00 a.m. in Department 63** for status of arbitration. **No appearance is necessary on today's calendar.**

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

This matter is on calendar for trial setting. The Court granted Plaintiff's counsel's Motion to be Relieved on this morning's Law & Motion calendar. The matter is continued to **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of counsel and trial setting. **No appearance is necessary on today's calendar.**

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

This matter was dismissed on this morning's Law & Motion calendar and all future hearing dates were vacated.

SHIPMAN VS. TATICH

CASE NUMBER: 23CV-0203612

This matter is on calendar for a trial setting conference. The previous trial date was vacated following a stipulation by the parties. The Court has already found this matter to be exempt from plan designation. Both parties waived jury on January 12, 2026. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. The Court notes that this matter was filed on November 9, 2023. The Court intends to set the court trial no later than January 12, 2027. **An appearance is necessary on today's calendar.**

STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.

CASE NUMBER: 25CV-0206834

This matter is on calendar for a trial setting conference. At the review hearing on August 10, 2026, Plaintiffs confirmed that the six defendants who have not filed responsive pleadings to the First Amended Complaint may be dismissed without prejudice. The Court authorized Plaintiffs to file a Second Amended Complaint that removes the six defendants. Plaintiffs did not file a Second Amended Complaint. The matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of the Second Amended Complaint and to set a trial date. If the matter is not at issue prior to the next review hearing, the Court intends to issue an Order to Show Cause Re: Sanctions to Plaintiffs and counsel. **No appearance is necessary on today's calendar.**

WEIDEMAN VS. HERNANDEZ

CASE NUMBER: 25CV-0208335

This matter is on calendar for review regarding status of bankruptcy and refinancing. The Court notes that the parties reached a settlement at the court trial on June 30, 2026. Neither party filed a status statement. The parties are ordered to meet and confer regarding how long it may take for the settlement to be completed. **An appearance is necessary on today's calendar.**

WIEMERS, ET AL. VS. HOERNING, ET AL.

CASE NUMBER: 25CV-0208527

This matter is on calendar for review regarding status of the case. The Court notes that both Defendants have been served but have not filed responsive pleadings. Plaintiff is reminded of the timeline set forth in CRC 3.110(g). The matter is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading or default. The Court expects Plaintiff to take the necessary steps to get the matter at issue prior to the next review hearing. **No appearance is necessary on today's calendar.**

WOLFPACK WOOD RECYCLING, INC. VS. WINTERBURN

CASE NUMBER: 23CV-0203080

This matter is on calendar for review regarding status of default judgment. No status statement has been filed. **An appearance is necessary on today's calendar.**